

The Motion is unopposed.

Analysis

The parties entered into a CCP 664.6 agreement, filed 12/12/25, where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for judgment to be entered in the amount of \$7,278.07, less any credits for payments received, and including any costs.

Defendant made total payments in the amount of \$479, and court costs totaled \$296.02, thus the Judgment amount should be \$7,095.09.

Disposition

Plaintiff's Motion is granted.

Plaintiff to file order on Motion, as well as submit Judgment.

7. 9:00 AM CASE NUMBER: L25-04349
CASE NAME: WELLS FARGO BANK, NA VS. PEDRO GARCIA
*HEARING ON MOTION IN RE: FOR JUDGMENT ON THE PLEADINGS
FILED BY: WELLS FARGO BANK, NA

TENTATIVE RULING:

Background

Plaintiff filed, on 12/19/25, a Motion for Judgment on the Pleadings. The motion was timely served on counsel for Defendant. The Motion is unopposed. On 12/4/25, the court granted Plaintiff's Motion to deem matters true those requested in Plaintiff's Request for Admissions. All but the final request for admission were deemed to be true by the court.

Analysis

A motion for judgment on the pleadings may be brought by a plaintiff where the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. Code Civ. Proc. § 438(c); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2024) ("Rutter Civ. Pro.") § 7:290. The grounds for a motion for judgment on the pleadings must appear on the face of the pleadings or be based on facts that a court may judicially notice. Civ. Proc. § 438(d); Rutter Civ. Pro., § 7:291. Matters that may be judicially noticed include a party's admissions or concessions which cannot reasonably be controverted. *Pang v. Beverly Hospital, Inc.* (2000) 79 Cal.App.4th 986, 989-990.

Plaintiff's Complaint alleges Breach of Contract as the sole cause of action, based on the allegation that Defendant became indebted in the amount of \$12,256.13, on a credit card account.

Defendant's Answer denies the allegations of the Complaint and states various affirmative defenses.

Later, Plaintiff filed a motion to deem the truth of matters admitted in a set of Request for Admissions (the "RFAs") served on Defendant which was granted by the Court. See Order entered 12/4/25 (the "Deemed Admitted Order"). The Court takes judicial notice of the Deemed Admitted Order and the underlying court filings in connection with the Deemed Admitted Order.

Based upon the Deemed Admitted Order, it is evident that Defendant has been deemed to admit to the fact of the subject debt and the amount owing, \$12,256.13.

Those admissions are binding upon Defendant for purposes of a motion for judgment on the pleadings. *Myers v. Trendwest Resorts, Inc.* (2009) 178 Cal.App.4th 735, 746 ("Judicial admissions may be made in a pleading, by stipulation during trial, or by response to request for admission.").

Disposition

The Court finds and orders as follows:

1. The Motion for Judgment on the Pleadings is GRANTED.
2. Plaintiff shall file Order.

8. 9:00 AM CASE NUMBER: L25-05653
CASE NAME: MARCOS RAMOS VENTURA VS. BABUSHKA RUSSIAN DELI & CAFE, INC.
*HEARING ON MOTION IN RE: STRIKE DEFENDANT'S ANSWER
FILED BY:
TENTATIVE RULING:

Background

Plaintiff filed a Motion to Strike Defendant's Answer, and served notice on the Defendant by Mail.

The Motion is unopposed.

Analysis

California Code of Civil Procedure § 435(b)(1) provides that a party may serve and file a notice of motion to strike the whole or any part of a pleading within the time allowed to respond to the pleading. Under California Code of Civil Procedure § 436, the Court may:
(a) Strike out any irrelevant, false, or improper matter inserted in any pleading; or